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CITY OF OREGON CITY

Staff Report

To:	City Commission	**Agenda Date:**	October 7, 2026
From:	Kelly Hart, Community Development Director Pete Walter, Planning Manager Jude Thaddaeus, Planner		

SUBJECT:
Item 9.c. - First Reading of Ordinance No. 26-1010, Street Tree Penalties, Modification to Chapter 1 and Chapter 12 of the Oregon City Municipal Code

STAFF RECOMMENDATION:
Staff recommends the City Commission approve the first reading of Ordinance No. 26-1010 amending OCMC Chapters 1.16, 1.20, 1.24, and 12.08.

EXECUTIVE SUMMARY:
This report presents the complete street tree penalty code amendment package for Commission action. The package is the product of three prior Commission discussions: an initial work session reviewing the City's existing penalty structure and comparator city approaches; direction given in March 2026 to build a stronger deterrent framework with a maximum penalty generally around $25,000; and the May 20, 2026 work session at which staff presented draft code amendments, a proposed enforcement section, and two alternative fee models.

The package now before the Commission has four components:

A. **Chapter 1 penalty maximum.** Amendments to OCMC 1.16.010, 1.20.090, and 1.24.210 raising the general civil infraction maximum from $300 to $1,000 unless otherwise specified in code.
B. **Chapter 12.08 enforcement structure.** Replacement of the existing OCMC 12.08.050 "Violation—Penalty" section with a complete "Enforcement" section establishing interpretations, enumerated violations, penalties, enhanced penalty factors, and general enforcement provisions.
C. **Street tree penalty fee schedule.** A base fine tiered by tree size, plus $5,000 for each aggravating factor present, adopted by resolution rather than by ordinance so that amounts can be adjusted over time and per CPI without reopening the code framework.
D. **Post–work session refinements to Chapter 12.08.** Both the changes the Commission directed on May 20 and a set of additional housekeeping amendments staff recommend to clarify ambiguities, streamline application processing, and reflect current arboricultural best practices.

Components 1 through 3 are substantially as presented on May 20. Component 4 is new

since that meeting and is described in detail under “Refinements Since the May 20, 2026 Work Session” below.

On September 2, 2026, the City Commission considered the first reading of the ordinance and voted to unanimously approve the first reading of the ordinance, with a modification to the language in Section 1 of the ordinance and an edit to the ordinance draft regarding tree replacement size requirements. On September 16, 2026, the City Commission considered the second reading of the ordinance and voted to modify Chapter 12 to clarify that the minimum tree replacement size shall be 1.25 inches, and not a range between 1.25 and 1.5 inches. On October 7, 2026, the City Commission will consider a new first reading of the ordinance to consider the amended ordinance language.

BACKGROUND:

Existing conditions and the initial work session

Oregon City’s street tree penalty structure relies primarily on the City’s general civil infraction framework. The relevant penalty language dates back to 1994 and currently provides a maximum penalty of $300 unless a different amount is specified in code. At the initial work session on this subject, staff presented that existing penalty structure and the related code provisions, reviewed comparator city approaches, and asked whether Oregon City should establish a stronger street tree enforcement framework.

The policy problem identified in that discussion was not the absence of a mitigation requirement. Oregon City already requires replacement trees and, where replanting is infeasible, a fee in lieu. The problem is that the penalty attached to violating those requirements has not functioned as a meaningful deterrent — in many cases, the $300 maximum is materially less than the cost of the permit process and mitigation an applicant would otherwise bear.

March 2026 Commission direction

The Commission directed staff to move forward with a stronger penalty framework that better deters the removal or topping of non-hazardous or non-diseased street trees, particularly in higher-priority areas such as downtown and the 7th Street/Molalla Avenue corridor. The Commission further directed that the maximum penalty be increased to generally around $25,000.

May 2026 work session

Staff returned on May 20, 2026 with draft code amendments and a proposed street tree penalty fee structure responding to that direction. The draft framework retained the City’s existing replacement and fee-in-lieu structure, clarified how street tree violations are identified and enforced, and created a tiered penalty schedule based on tree size with enhanced penalty factors for aggravating circumstances.

The Commission directed staff to refine the proposed amendments, further define tree wells, remove street trees planted in tree wells from qualifying for the mitigation exemptions, and clarify that street trees exempt from replanting requirements under OCMC 12.08.035.E

are also exempt from the penalties the Commission wishes to enact. The Commission also directed staff to return with final ordinance and resolution materials for adoption.

COMPONENT 1 — GENERAL CIVIL INFRACTION MAXIMUM (OCMC 1.16, 1.20, 1.24):

Draft amendments to OCMC 1.16.010, 1.20.090, and 1.24.210 replace the existing $300 maximum penalty language with a $1,000 maximum penalty, unless otherwise specified in the code. This change is foundational to the rest of the package for two reasons. First, it establishes a stronger base penalty across the City's general code enforcement framework, not only for street trees. Second, the street tree penalty schedule is built on top of the base civil infraction, and the "unless otherwise specified" language is what allows the Commission to set street tree penalty amounts above the general maximum by resolution.

The proposed street tree penalty amounts are stated as total penalty amounts that are inclusive of the $1,000 base civil infraction. Staff have included language in Resolution 26-23 expressly stating this, so that there is no ambiguity during enforcement about whether the base infraction is charged in addition to the scheduled amount.

COMPONENT 2 — CHAPTER 12.08 ENFORCEMENT STRUCTURE:

The draft amendment renames OCMC 12.08.050 from "Violation—Penalty" to "Enforcement" and replaces it with a more complete structure addressing interpretations, violations, penalties, enhanced penalties, and general enforcement.

Permit pathway and relationship to Chapter 17 definitions

The proposed changes to OCMC 12.08.035 clarify that street tree removal, as defined by OCMC 17.04, may be authorized through a Tree Permit application process in a form established by the City. This makes the relationship between Chapter 12 and the operative Chapter 17 definitions explicit, particularly for topping, severe crown reduction, tree removal, and major pruning — terms that carry defined meanings in Chapter 17 but were not previously cross-referenced in the street tree code.

Interpretations

Proposed OCMC 12.08.050.A establishes how an unpermitted street tree removal may be established as a factual matter:

A. A street tree removed, as defined by OCMC 17.04, without an approved Street Tree Removal Permit will be considered an unpermitted tree removal.
B. Where a street tree has been removed without a permit, the violation will be determined by measuring the stump. A stump six caliper inches or more in diameter is prima facie evidence of a violation of the chapter.
C. Proof of a violation of the chapter is prima facie evidence that the property owner is responsible for the violation.

These provisions matter operationally. In most unpermitted removal cases the tree is already gone by the time staff become aware of the violation, and the stump is the only

remaining physical evidence of the tree's size. Establishing stump measurement as the measurement method, and property ownership as the presumptive basis of responsibility, is what makes the tiered penalty schedule administrable.

Enumerated violations

Proposed OCMC 12.08.050.B identifies the following as violations of Chapter 12.08:

A. Removal or topping of a regulated street tree without an approved permit;
B. Removal of a tree in violation of an approved permit;
C. Major pruning of a street tree or public tree without an approved permit;
D. Failure to meet a condition of an approved permit or to complete required mitigation;
E. Topping, improper pruning, or otherwise inflicting willful or negligent damage to a tree crown or roots inconsistent with ISA Best Management Practices;
F. Removal of the stump of a regulated tree removed without a permit;
G. Unauthorized ground disturbance or construction activity within the Critical Root Zone, including equipment access, material storage, impervious surfaces, utilities, excavation, fill, or trenching;
H. Soil contamination that renders the soil inadequate to support healthy tree growth to maturity, as determined by a certified arborist; and
I. Interference with City staff carrying out work or inspection activities under the chapter.

Two of these warrant note. Removal of the stump of an unpermitted removal is listed as a separate violation because destroying the stump destroys the evidence on which the penalty tier depends. Critical root zone disturbance and soil contamination are included because a street tree can be killed without ever being cut down, and the existing code provided no clear enforcement pathway for that conduct.

Penalties and enhanced penalty factors

Proposed OCMC 12.08.050.C provides that violations may be processed as civil infractions under Chapter 1.20, through the Code Enforcement process under Chapter 1.24, and through penalties identified in Chapter 12.08 in the amounts established by City Commission resolution. For willful or negligent damage to a tree that is not removed, the penalty may be the amount established by resolution or the appraised loss in value of the topped or improperly pruned tree as determined by a certified arborist, plus the arborist's reasonable appraisal fee, and may include restoration of the crown, trunk, or root system as prescribed by a certified arborist and the City.

An enhanced penalty would apply where any of the following aggravating factors are present:

A. The person has a previous violation of the chapter, or removed the street tree after being informed of the permitting process;
B. The street tree removed was twenty-four inches in diameter or greater;
C. The street tree removed was a heritage tree under OCMC 12.32;
D. The street tree removed was located within the Willamette River Greenway

Overlay District under OCMC 17.48; or

E. The street tree removed was within the MUD, MUC-1, or MUC-2 zoning districts.

The proposed general penalty provision states that a violation is punishable by a fine not to exceed $1,000 unless otherwise specified in a Commission-adopted fee resolution, and that each tree and each day of violation constitutes a separate offense.

COMPONENT 3 — PROPOSED FEE AND PENALTY STRUCTURE (RESOLUTION 26-23):

The penalty structure the Commission settled on has two parts. The first is a base fine tiered by the diameter of the tree removed, measured at four feet in height. The second is an additional $5,000 for each aggravating factor present. The base fine is inclusive of the $1,000 civil infraction, which is charged in every case.

Diameter of Tree Removed (inches of diameter at 4-ft. height)	Base Fine
Less than 6 inches	$1,000
6 to 12 inches	$2,500
13 to 18 inches	$5,000
19 to 24 inches	$7,500
25 to 30 inches	$10,000
31 to 36 inches	$12,500
37 to 44 inches	$15,000
45 inches and above	$20,000

An additional $5,000 is added to the base fine for each aggravating factor established under the enhanced penalty provisions of OCMC 12.08.050 and listed under Component 2 above. Because the enhancement is applied per factor rather than as a single flat tier, the total penalty scales with the number of aggravating circumstances rather than with their presence alone. The following examples illustrate how the structure would be applied:

Example Scenario	Base Fine	Aggravating Enhancement Factors	Total Penalty
40-inch street tree removed without a permit	$15,000	One: tree 24 inches or greater	$20,000
40-inch street tree removed without a permit within the Willamette River Greenway	$15,000	Two: 24 inches or greater, WRG location	$25,000
40-inch street tree removed without a permit within the Willamette River Greenway in a MUC-1 zone	$15,000	Three: 24 inches or greater, WRG location, MUC-1 zone	$30,000

COMPONENT 4 — REFINEMENTS SINCE THE MAY 20, 2026 WORK SESSION:

The redlined and clean code documents attached to this report incorporate everything described above plus the following changes, which were made after the May 20 work session. The first two respond directly to Commission direction. The remainder are staff-initiated amendments offered while the chapter is open for amendment.

Changes made at Commission direction

A. **Tree wells (OCMC 12.08.035.E.2).** The exemption for trees in planter strips three feet or less in width has been amended to define a tree well as an opening or protected planting area for a single street tree, and to state expressly that trees planted in tree wells — regardless of the dimensions of the well — are not exempt from permit and replacement requirements. Without this language, a street tree in a tree well could be read as exempt simply because the well is narrower than three feet, which is the opposite of the Commission's intent. The amendment also adds "without a permit" to the existing exemption language so the scope of the exemption is unambiguous.

B. **Exempt trees and penalties (new OCMC 12.08.035.E.3).** New subsection E.3 states that street trees exempt from replacement requirements shall be verified as exempt, and are not subject to the fines and penalties in OCMC 12.08.050. This closes the gap the Commission identified: a property owner who lawfully removes a nuisance-species tree or a tree in a narrow planter strip should not face a penalty under the new enforcement section.

The revised language does retain a verification requirement as a precondition to claiming an exemption. Staff recommend keeping it. In practice, applicants commonly believe and assert that their trees are nuisance species, or that their planter strips are thirty-six inches or less, when conditions on the ground prove otherwise. Without a verification step, the exemption becomes self-certifying and the enforcement framework loses most of its effect.

Additional staff-initiated amendments

A. **Street trees of any diameter (OCMC 12.08.035 and 12.08.035.B).** OCMC 17.04.1315 defines a tree as follows:

"Tree" means a living standing woody plant having a trunk six inches in diameter or nineteen inches in circumference or more at a point four and one-half feet above mean ground level at the base of the tree.

Applying that definition to the street tree code would be inconsistent with the fee and penalty structure the Commission has directed. It could also be read to exempt newly or recently planted street trees from the street tree removal policy altogether, on the basis that they measure less than six inches DBH or nineteen inches in circumference. The proposed penalty schedule expressly includes a tier for trees less than six inches in diameter; if that tier is to have any effect, the code must state that street trees below the six-inch threshold remain subject to replacement, mitigation, and penalties. Clarifying language has been added to the applicability statement in OCMC 12.08.035 and to OCMC 12.08.035.B.

B. **Minimum street tree caliper of one and one-quarter inches (OCMC 12.08.015.C and 12.08.035.B).** OCMC 12.08.015.C currently requires new street trees planted in conjunction with development to measure at least two inches in caliper six inches above the root crown, while OCMC 12.08.035.B requires replacement street trees to measure at least one and one-half inches. Staff recommend a single standard of one and one-quarter inches in both cases. Friends of Trees recommends the smaller caliper — which Eugene permits — for the following reasons:

a. Trees establish faster and more successfully, with lower mortality.
b. Root defects are less common, because significantly less time is spent growing in pots.
c. Smaller trees are faster and easier to transplant.
d. Trees need less water per tree and establish in less time.
e. Nursery stock is easier and less costly to source.

Pete Walter, Planning Manager and ISA-Certified Arborist, has submitted a Staff

Memo – see Exhibit G – that explains why changing OCMC 12.08 to permit the planting of 1.25-inch caliper street trees complies with current arboricultural best practices.

C. **Verification of dead street trees (new OCMC 12.08.035.A.3).** Diseased and hazardous trees are defined in OCMC 17.04.1360 and 17.04.1363 respectively, and those definitions themselves require confirmation of condition by a certified arborist report. No definition of a dead tree exists anywhere in the Oregon City Municipal Code. Elsewhere in the code, OCMC 17.41.060.B.2 — the Tree Protection and Mitigation Plan provisions — permits the community development director to determine whether a tree is dead and requires a certified arborist report only where the director cannot make that determination. Staff recommend carrying that same language into OCMC 12.08.035.

   The practical effect is to reduce a barrier to removing obviously dead street trees. In the experience of Planning staff, several applicants have decided against replacing an obviously dead tree because of the cost of obtaining a certified arborist report. Leaving dead street trees standing in planter strips increases the likelihood that they fall into the right-of-way or onto abutting property, and it delays their replacement with living canopy.

D. **Removal of redundant certified arborist references (OCMC 12.08.035.A and Table 12.08.035).** This follows from the preceding item. Diseased and hazardous trees already require a certified arborist report by operation of their Chapter 17 definitions. Retaining blanket references to certified arborists for dead, diseased, and hazardous street trees as a single category invites confusion about which process applies to which circumstance. OCMC 12.08.035.A has been amended to refer to trees "as defined in OCMC 17.04," and the column headings of Table 12.08.035 have been amended accordingly. Note that this item is dependent on the preceding one: if the Commission does not adopt the dead tree verification amendment, these references should be retained.

E. **Minor drafting clarification (OCMC 12.08.050.B.1.e).** The damage violation has been amended to read "topping, improper pruning, or otherwise inflicting willful and negligent damage," so that ordinary maintenance pruning consistent with ISA Best Management Practices is not captured by the violation language.

OPTIONS:

1. Approve First Reading of Ordinance No. 26-1010, Street Tree Penalties, Modification to Chapter 1 and Chapter 12 of the Oregon City Municipal Code.
2. Approve First Reading of Ordinance No. 26-1010, Street Tree Penalties, Modification to Chapter 1 and Chapter 12 of the Oregon City Municipal Code with Amendments.
3. Deny First Reading of Ordinance No. 26-1010, Street Tree Penalties, Modification to Chapter 1 and Chapter 12 of the Oregon City Municipal Code and provide further direction.
4. Continue the discussion to a future meeting and provide direction to staff.

BUDGET IMPACT:

There is no immediate fiscal impact associated with adoption of the proposed amendments and fee schedule. If adopted, the proposal will increase code enforcement revenue for civil infractions generally. In cases involving unpermitted street tree removal, topping, or damage, staff would note that the purpose of the schedule is deterrence rather than revenue, and that a fully effective deterrent would generate little revenue.

The proposal will create some additional administrative work for code enforcement, planning, public works, and legal staff in investigating violations, documenting tree size, applying enhanced penalty factors, and processing enforcement actions. Adopting the smaller one-and-one-quarter-inch minimum caliper may allow more trees to be purchased and planted with the same dollars through the City's Tree Mitigation Fund and its partnership with Friends of Trees.

ATTACHMENTS:

A. Ordinance 26-1010
    a. Exhibit A: Oregon City Municipal Code Chapters 1.16 – General Penalty, 1.20 – Civil Infractions, and 1.24 – Code Enforcement (Clean Code - Amended).
    b. Exhibit B: Oregon City Municipal Code Chapter 12.08 – Public and Street Trees (Clean Code -Amended).
    c. Exhibit C: Draft Code Amendments (Redlines - Amended): Chapters 1.16 – General Penalty, 1.20 – Civil Infractions, and 1.24 – Code Enforcement.
    d. Exhibit D: Draft Code Amendments (Redlines - Amended): Chapters 12.08 - Public and Street Trees
B. 8.24.2026 Staff Memo from Peter Walter, Planning Manager and ISA-Certified Arborist
C. Working Documents:
    a. Current Code: Chapters 1.16 – General Penalty, 1.20 – Civil Infractions, and 1.24 – Code Enforcement.
    b. Current Code: Chapter 12.08 – Public and Street Trees.

ORDINANCE NO. 26-1010

AN ORDINANCE OF THE CITY OF OREGON CITY AMENDING OREGON CITY MUNICIPAL CODE TITLE 1 – GENERAL PROVISIONS, CHAPTERS 1.16 – GENERAL PENALTY, 1.20 – CIVIL INFRACTIONS, 1.24 – CODE ENFORCEMENT, AND TITLE 12 – STREETS, SIDEWALKS AND PUBLIC PLACES, CHAPTER 12.08 – PUBLIC AND STREET TREES.

WHEREAS, at the direction of the City Commission, OCMC 1.16.010, 1.20.090, and 1.24.210 have been amended to raise the general civil infraction minimum from $300 to $1,000 unless otherwise specified in code to build a stronger deterrent framework; and

WHEREAS, at the direction of the City Commission, additional penalties and a specific enforcement framework have been added to OCMC 12.08 to establish clear code interpretations and build a stronger framework to deter illicit removal of public street trees and enforce future violations; and

WHEREAS, at the direction of the City Commission, the Planning Fee Schedule has been altered to enumerate the tiered fine and penalty structure chosen by the City Commission to be adopted by Resolution (i.e., Resolution 26-23) to enable future adjustment according to the CPI without reopening the code; and

WHEREAS, both the City Commission and Planning Staff have identified certain aspects of the Street Tree Code that require cleanup for clarity of interpretation on definitional applicability, tree wells, and exempt trees, adoption of current arboricultural best practices for revisions to minimum street tree caliper and damage violations, and streamlined review processes for dead street trees.

NOW, THEREFORE, OREGON CITY ORDAINS AS FOLLOWS:

Section 1. The City Commission hereby amends the portions of the existing Oregon City Municipal Code Titles 1 and 12, as identified in the red text in Exhibits C and D, and as fully incorporated in Exhibits A and B.

Section 2. Severability. If any provision of this Ordinance or its application to any person or circumstance is held invalid, the invalidity does not affect other provisions or applications of this Ordinance that can be given effect without the invalid provision or application, and to this end, the provisions of this Ordinance are severable.

Section 3. Effectiveness. This Ordinance shall take effect thirty days after the second reading.